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Tentative Ruling

DONN

E. REDIGER AND JUDITH A. REDIGER'S Demurrer to Plaintiffs' First Amended Complaint is OVERRULED.

Background

This case

arises from an explosion that happened on 10/9/23 at a property wherein certain defendants were engaged in the cannabis extraction business enterprise. As for the parties, they are as follows: Plaintiff XIAODAN HAN, an individual (spouse of decedent Guangqi Fu); Plaintiff XIAODAN HAN as the Guardian ad Litem of KEIRA FU, a minor; Plaintiff XIU WEN, an individual (surviving spouse of decedent Qizhuo Liang); and Plaintiff XIU WEN as the Guardian ad Litem of CHANGMU LIANG, a minor; Defendant TED CHIEN ("Ted"), an individual, also known as "THEODORE S CHIEN" (operator of the business); Defendant DAWN CHIEN ("Dawn"), an individual (spouse of Chien who allegedly participated in and shared the business profits); Defendant HAN QUAN JIAO SR ("Han"), an individual (operator of the business); Defendant XIAO QIN HUANG ("Xia"), an individual (spouse of Han who participated in and shared business profits); Defendant DONN E. REDIGER, an individual; Defendant DONNE. REDIGER as Trustee of The Rediger Family Trust dated June 4, 1992; Defendant JUDITH A. REDIGER, an individual; and Defendant JUDITH A. REDIGER as Trustee of The Rediger Family Trust dated June 4, 1992 (the Rediger Trust is alleged to be the owner of record of the premises where the catastrophic explosion occurred and killed Decedents).

On September

15, 2025, Plaintiffs filed suit for wrongful death.

On October 3,

2025, Dawn filed a filing with the court indicating that “someone delivered” presumably the summons and complaint and that she does “not know th[e]se plaintiffs and that [sic] is [sic] scam.”

On November

4, 2025, Dawn and Xiao filed an answer/general denial, and Ted and Han filed their respective answer.

On November

26, 2025, DONN E. REDIGER AND JUDITH A. REDIGER (collectively the “Rediger Defendants”) filed a demurrer, which on 3/12/26, the court sustained with leave to amend.

On May 8,

2026, a first amended complaint (FAC) was filed.

On July 22,

2026, the instant demurrer was filed.

On September

1, 2026, an opposition was filed.

On September

9, 2026, a reply was filed.

Discussion[1]

The

Rediger Defendants demur to the FAC on similar grounds as before: that the allegations are conclusive and fail to establish individual ownership, possession, or control on the part of the Redigers, fail to establish personal fault as required under Probate Code §§ 18001–1800, and fail to establish a legal duty owed by the Redigers as individuals. (See e.g., Demurrer[2]

“[T]hese allegations remain conclusory, speculative, and unsupported by specific facts... The FAC contains no non-conclusory facts.... the FAC offers only conclusory statements that the Redigers “knew” of dangerous conditions, “should

have known” about such conditions, and “failed to act”.... These are precisely the type of conclusory allegations rejected by California courts.”].)

For reasons to be discussed below—namely as the FAC addresses some of the court’s concerns and ultimate facts have been pled—the court overrules the demurrer.

Pleading Standard(s)

As

Rediger Defendants largely argue that the FAC offers only conclusory facts, the court finds it prudent to start with a preliminary doctrinal recitation of the pleading standard in California.

The

primary function of a pleading is to give the other party notice so that it may prepare its case. (See e.g., *Shah v. Skillz Inc.*, (2024) 101 Cal.App.5th 285; see also *Harris v. City of Santa Monica* (2013) 56 Cal.4th 203; *In re Marriage of Lippel* (1990) 51 Cal.3d 1160; *Reichert v. General Ins. Co. Of America* (1968) 68 Cal.2d 822.) A complaint is sufficient if it alleges ultimate facts; it need not allege evidentiary facts.[3] Ultimate facts are those essential facts of a plaintiff’s that acquaint [the] defendant with reasonable precision and with particularity of the nature, source and extent of the plaintiff’s claim.” (*Annocki v. Peterson Enterprises, LLC* (2014) 232 Cal.App.4th 32, 36, internal citations omitted.) Now, an ultimate fact may not be a conclusion of law. In practice, and even in the abstract, the difference between ultimate facts and conclusions of law is difficult to state, and the line between statements of fact and conclusions of law is not always easy to draw. (See e.g., *Perkins v. Superior Court* (1981) 117 Cal.App.3d 1; *Krug v. Meehan* (1952) 109 Cal.App.2d 274.) The test: whether any evidence outside the pleading itself could be offered in support of the allegation; if such evidence could be offered, the allegation would be an allegation of ultimate fact and not a conclusion of law. (*New v. Mutual Ben. Health & Acc. Association* (1938) 24 Cal.App.2s 681.) As one court has framed it: “The basic test of whether an allegation is a statement of fact or a conclusion lies in the answer to the question: Does it usurp the province of the court to draw from it all legal inferences or conclusions which are determinative of the issue? [] As a general rule, if it does, it is a conclusion; if it does not, it is a statement of fact.” (*Waco-Porter Corp. v. Superior Court In and For Tuolumne County* (1963)

211 Cal.App.2d 559, 567.)

Previous

Ruling

The court's previous ruling relied upon Plaintiffs' citation to *People v. Braum* (2020) 49 Cal.App.5th 342 to show how unlike that case, the complaint does not allege that the individual trustees had notice of any illegal activity or that the allegations could lend to such inference. The court also was concerned with the complaint's allegation on how the individual Defendants should have been physically present at the property to manage when such activity by a landlord would inarguably invade the tenants' rights to privacy and amount to the landlord's breach of the lease by entering the premises without the consent of the tenants.

Comparing the complaints

The FAC does add more.[4]

The

(original) complaint alleged liability based on, among other things, "the inherently suspicious nature of the tenancy, unusual and dangerous modifications made to the warehouse to accommodate the lab, excessive utility consumption, the presence of chemical odors, the delivery and storage of large quantities of flammable chemicals, and other red flags indicating the presence of a possibly illegal, dangerous, and ultrahazardous business operation that would and should have been apparent to any reasonable property owner exercising ordinary care." (§122.)

The FAC largely relies upon the same allegations but adds one major change: "reports and complaints by third parties regarding their tenants' usage of the Subject Premises" (§130). That is the nature and source of the liability asserted against the Rediger Defendants. But they argue that this allegation fails because "they are pleaded on information and belief without factual detail, they do not identify who observed these alleged conditions or when, and they do not connect these facts to the Redigers personally." What Defendants are requiring from

Plaintiffs are evidentiary facts. That is not required. (See e.g., C.A. v William S. Hart Union H.S. Dist. (2012) 53 C4th 861, 872 [the plaintiff is not required

to

identify by name or position which of the defendant's employees committed the negligent acts or omissions for which the defendant is allegedly liable].) All in all, this allegation satisfies the test above because evidence gathered via discovery can be offered to support this allegation (i.e., who made the report, the number of reports, etc.).[5]

Conclusion

Based on the

foregoing, as the FAC does allege that the Rediger Defendants had notice of potential illegality such that they failed to act in their roles to address/remedy the danger, the demurrer is overruled.

[1] For a detailed recitation of the pertinent rules, the court refers the parties to the court's previous ruling.

[2] The demurrer is not paginated.

[3] In fulfilling this function, the complaint need not set forth the evidence by which plaintiff proposes to prove those facts. (Committee on Children's Television, Inc. v. General Foods Corp. (1983) 35 Cal.3d 197, 212.)

[4] Plaintiffs also allege that the "operative, commercial lease agreement between the landlords DONN E. REDIGER and JUDITH A. REDIGER, individually and as co-trustees of the REDIGER TRUST on the one hand, and one or more of the OPERA TOR DEFENDANTS on the other hand, included a right of entry and corresponding duty on behalf of both DONN E. REDIGER and JUDITH A. REDIGER, individually and as co-trustees of the REDIGER TRUST, to regularly inspect the Subject Premises for potentially and actually dangerous conditions and to enter the Subject Premises in order to implement all reasonable and necessary measures to address and remedy any and all potential and/or actual dangerous conditions on the Subject Premises." (FAC ¶ 28.) Defendants argue that no facts are pleaded about the lease itself and the FAC does not quote, attach, or describe actual lease provisions and that the existence and scope of any "right of entry" is highly speculative. This argument is perhaps better suited for breach of contract, which is not at issue here but negligence, and negligence can be

pleaded in general terms. In any event, the allegation regarding the third party reports is sufficient to overcome the demurrer.

[5] And as noted in
opposition, *Castellon v. U.S. Bancorp* (2013)
220 Cal.App.4th 994 and *Haskett v. Villas at Desert Falls* (2001) 90
Cal.App.4th 864 were not decided on demurrers.